

MA, Xiao

CONTACT	xma@sjd.law.harvard.edu • Cambridge, MA • +1 (617) 800-7091 https://www.maxiao.law	
EDUCATION	Harvard Law School , Cambridge, MA <i>S.J.D.</i> Dissertation: <i>Political Determinants of Bankruptcies in China</i> Research Fields & Supervisors: Bankruptcy and Corporate Reorganization with Prof. Mark Roe (Principal); Comparative Corporate Law with Prof. Reinier Kraakman; China's Political Economy with Prof. Mark Wu Fellowships & Grants: Graduate Program Fellow; Cravath International Summer Travel Grants; Conference Travel Grants; Fairbank Center Graduate Conference Grant Research: Research Assistant to Prof. William Alford, Prof. Howell Jackson, Prof. Mark Roe Teaching: Teaching Fellow, Bankruptcy (Spring 2022, Fall 2022)	May 2027 (expected)
	Harvard Law School , Cambridge, MA <i>LL.M.</i> F.Y. Chang Scholar; Honors Thesis on Intragroup Guarantees and Complications in Bankruptcy	2016
	University of Oxford , St. Hilda's College <i>Magister Juris</i> China Oxford Scholar; Distinction in Public International Law	2012
	Beijing Foreign Studies University <i>LL.B. and B.A. in English</i> Scholarships; Honors Thesis on International Humanitarian Law	2011
RESEARCH INTERESTS	Bankruptcy and Corporate Reorganization; Corporate Law; Corporate Finance; Chinese Law; Law and Political Economy; Comparative and Empirical Legal Studies; Commercial Arbitration; Cross-Border Insolvency; Sovereign and Municipal Debt; Distressed Investing	
WORKING PAPERS	<i>State-in-Possession: Big Firm Reorganizations in China</i> (dissertation chapter; case studies of HNA and Evergrande; 70+ interviews, fieldwork, and archival research; presented at Harvard, Oxford, Duke, ASCL, and NBLSC, 2024–2026). <i>Allocating Loss: Municipal Bankruptcy and Fiscal Discipline in China</i> (dissertation chapter; reframes China's local-government debt crisis as a loss-allocation problem modeled on U.S. Chapter 9; presented at Sciences Po, AAS, and LSA, 2026). <i>Bankruptcy as State Policy</i> (work in progress; theorizes “reverse industrial policy” through managed firm contraction and asset reallocation).	
PUBLICATIONS	“Crypto-Bankruptcy Series: Concluding Thoughts,” Harvard Law School Bankruptcy Roundtable (Chief Editor for Special Series).	

“China Continues to Issue New Rules in Promotion of Corporate Rescue Culture,”
Harvard Law School Bankruptcy Roundtable.
“Tribune II: Law Firm Perspectives” and “Ultra III: Law Firm Perspectives,” Harvard
Law School Bankruptcy Roundtable.

EXPERIENCE	Southern Methodist University , Dallas, TX <i>Visiting Scholar, Comparative Political Economy and Society</i>	2025 – 2026
	Texas A&M University School of Law , Fort Worth, TX <i>Visiting Scholar, Global Program</i>	2024 – 2025
	Harvard Law School , Cambridge, MA <i>Bankruptcy Fellow; Visiting Scholar / East Asian Legal Studies</i>	2019 – 2021
	Reorg , Hong Kong SAR (Part-time / Remote) <i>China Analyst</i>	2019 – 2020
	Kirkland & Ellis , Hong Kong SAR <i>Restructuring / Litigation Associate</i>	2016 – 2019
	Fangda Partners , Shanghai <i>Dispute Resolution Associate</i>	2012 – 2015
	SJ Berwin LLP (later merged with King & Wood Mallesons), London <i>Summer Vacation Scheme</i>	2012
	MWE China Law Offices (in alliance with McDermott Will & Emery), Shanghai <i>Summer Associate</i>	2010
BAR, MEMBERSHIPS & EDITORIAL	Bar Admissions: China (qualified 2013, registered 2014); New York (admitted 2017) Professional Memberships: American Bankruptcy Institute; INSOL International & INSOL China; Law & Society Association; American Society of Comparative Law; American Law and Economics Association; Association for Asian Studies; European Corporate Governance Institute Editorial Experience: Harvard International Law Journal, Editor; HLS Bankruptcy Roundtable, Chief Editor; Kanfa (BFSU Law Review), Chief Editor	
CONFERENCES & COMMUNITY	• SMU Law Goldberg Symposium, Welcome to Y'all Street — Attendee (2026) • SMU Law Faculty Workshop Series — Attendee (2025, 2026) • Ian Fletcher Cross-Border Insolvency Moot — Coach to Universitas Brawijaya, Indonesia (2025) • Alumnae-I Network for Harvard Women, Dallas DSG — President (2025, 2026) • Law & Society Association Annual Meeting — Panel Chair and Discussant (2025) • Texas A&M Law Faculty Workshop Series — Attendee (2024, 2025) • Chinese Politics Research in Progress — Workshop Attendee (2024, 2025, 2026) • Harvard College Admission Alumni Interviewer (2024, 2025, 2026) • Faculty Women's Club of the UTSW — Board Member & Chair, More for Moms Group (2024–2026) • Annual Meeting of the American Society of Comparative Law — Attendee (2024, 2025) • Harvard Club of Dallas — Member and Volunteer (2023, 2024, 2025) • Language Access Program at HLS Clinical Programs — Volunteer (2023, 2024)	

- Association of American Law Schools Annual Meeting — Attendee (2022)
- Tsinghua University Law School — Advisor on Student Research Training (2021)
- East China University of Political Science and Law — Guest Lecturer (2021)
- Project Doing Business, World Bank — Contributor, China's bankruptcy law and practice (2015, 2016)
- Willem C. Vis Moot, Shanghai Round — Arbitrator (2015)
- Philip C. Jessup International Law Moot, China Round — Judge (2014)